



CHAPTER xxi.

An Act to confirm a Provisional Order under the Private A.D. 1917.
Legislation Procedure (Scotland) Act 1899 relating to
Dundee Harbour and Tay Ferries. [2nd August 1917.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation Procedure 62 & 63 Vict.
(Scotland) Act 1899 and it is requisite that the said Order should c. 47.
be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed shall be and the same is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Dundee Harbour and Tay Short title.
Ferries Order Confirmation Act 1917.

A.D. 1917.

SCHEDULE.

DUNDEE HARBOUR AND TAY FERRIES.

Provisional Order to authorise the Trustees of the Harbour of Dundee to borrow additional money and for other purposes.

WHEREAS by the Dundee Harbour and Tay Ferries Consolidation Act 1911 (hereinafter referred to as "the Act of 1911") the Acts relating to the harbour of Dundee and the Tay Ferries were consolidated with amendments and the Trustees of the harbour were reconstituted and reincorporated and the harbour and Tay Ferries undertakings were vested in the Trustees so reincorporated (hereinafter called "the Trustees") all as therein mentioned:

And whereas the provisions of the Act of 1911 were amended by the Dundee Harbour and Tay Ferries Order 1912 (hereinafter referred to as "the Order of 1912"):

And whereas by the Act of 1911 general powers were conferred on the Trustees for the construction and maintenance of works at the harbour and the Trustees were authorised to borrow for those purposes and the general purposes of the harbour other than the Tay Ferries on the security of the rates authorised by the Act of 1911 and the other revenues of the harbour and the rates authorised by the said Act to be levied at the Tay Ferries the sum of one hundred thousand pounds in addition to the sum of forty-five thousand two hundred and eight pounds sixteen shillings and threepence being the sum remaining unborrowed under the Acts relating to the harbour in force immediately previous to the commencement of the Act of 1911:

And whereas the Trustees have in the exercise of the said powers borrowed the sum of one hundred and thirty-three thousand six hundred and forty-four pounds seventeen shillings and tenpence for the said purposes and have expended the same in connexion with the harbour and the now unexercised borrowing powers of the Trustees for harbour purposes amount to eleven thousand five hundred and sixty-three pounds eighteen shillings and fivepence:

And whereas the said amount of the unexercised borrowing powers of the Trustees is insufficient for carrying out the powers

conferred on them by the Act of 1911 and for meeting the growing demands of the trade and shipping of the harbour and providing for the increased and increasing size of cargo vessels and for providing additional shed accommodation and crane equipment and for the other requirements of the harbour and it is expedient that the Trustees should be authorised to borrow further money for those purposes : A.D. 1917.

And whereas it is expedient that the other provisions in this Order contained should be enacted :

And whereas the purposes aforesaid cannot be effected without an order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Dundee Harbour and Tay Ferries Order 1917 and shall commence and have effect from and after the date of the passing of the Act confirming the same The Act of 1911 (as amended by the Order of 1912) the Order of 1912 and this Order may be cited together as the Dundee Harbour and Tay Ferries Acts 1911 to 1917. Short title
commence-
ment and
citation.

2. Subject to the provisions of this Order section 5 (Incorporation of provisions of Harbours Clauses Act) and section 7 (Incorporation of provisions of Commissioners Clauses Act) of the Act of 1911 shall so far as applicable and not varied by or inconsistent with this Order apply for the purposes of this Order as if they had been re-enacted herein. Incorporation
of Acts.

3. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Act of 1911 or the Order of 1912 or any of them have the same respective meanings And the expressions— Interpreta-
tion.

“ The Act of 1911 ” means the Dundee Harbour and Tay Ferries Consolidation Act 1911 ;

“ The Order of 1912 ” means the Dundee Harbour and Tay Ferries Order 1912 ;

“ The Harbour Acts ” means the Act of 1911 and the Order of 1912 and this Order.

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Order Confirmation Act, 1917.

A.D. 1917.
Power to
borrow
money.

4. The Trustees may (in addition to the sums already borrowed or authorised to be borrowed by them) from time to time borrow—

(a) For the purpose of exercising the powers conferred on the Trustees by the Act of 1911 in connexion with the harbour other than the Tay Ferries any sum or sums of money not exceeding in the whole the sum of two hundred thousand pounds; and

(b) For paying the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order the amount necessary therefor.

Application
of certain
provisions of
Act of 1911.

5. Subject to the provisions of this Order sections 168 to 185 both inclusive of the Act of 1911 shall mutatis mutandis apply to the money authorised to be borrowed by the Trustees under this Order.

Restriction
on exercise
of borrowing
powers.

6. Notwithstanding anything in this Order contained the Trustees shall not under the powers of this Order borrow any money (other than money required for the payment of the costs charges and expenses of or in connexion with the obtaining and confirming of this Order) during the continuance of the present War and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Costs of
Order.

7. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Trustees out of the moneys to be borrowed and received under the authority of the Harbour Acts or out of the rates to be levied under the Harbour Acts or other revenues of the Trustees Provided that if the said costs charges and expenses be paid out of borrowed money the same shall be repaid within five years from the commencement of this Order.

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